

		Moving parties are ordered to provide notice of the Court’s ruling.
13	Hestan Commercial Corporation vs. Purcell-Murray Company, Inc.	TENTATIVE RULING: For the reasons set forth below, Plaintiff Hestan Commercial Corporation’s Motion for Summary Judgment or, in the Alternative, Summary Adjudication is GRANTED. <u>Statement of Law</u> “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c); <i>Carver v. Volkswagen Group of America, Inc.</i> (2024) 107 Cal.App.5th 864, 876.) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); <i>R.J. Land & Associates Construction Co. v. Kiewit-Shea</i> (1999) 69 Cal.App.4th 416, 424.) “A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has

proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(1).)

“First, and generally, from commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1213-1214.)

“There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

“Second, and generally, the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876-877; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214; Code Civ. Proc., § 437c, subd. (p)(1) [plaintiff meets its burden by proving each element of its cause of action].) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851.)

Merits

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff. [Citation.]” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821; accord, *Coyote Aviation Corp. v. City of Redlands* (2025) 111 Cal.App.5th 955, 973.)

		“ ‘The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations.]’ [Citation.]” (<i>Leighton v. Forster</i> (2017) 8 Cal.App.5th 467, 491; accord, <i>Zurich American Ins. Co. of Illinois v. World Private Security, Inc.</i> (C.D. Cal., July 17, 2020, No. CV-19-6595-MWF (KSX)) 2020 WL 5415395, at *7.) Plaintiff met its initial burden of production. It presents evidence that, on December 31, 2015, the parties entered into the U.S. Distributorship Agreement, wherein Plaintiff sold products on credit to Defendant Purcell-Murray Company, Inc. This Agreement evinces prior transactions between the parties, which establishes the relationship of Plaintiff as the creditor, and of Defendant as the debtor. This Agreement also provides evidence the parties had an agreement as to the amounts due from Defendant, as well as Defendant’s promise to pay the amounts due. (Lin Declaration, ¶¶ 5-7, 12; Exhibit 1 to Lin Declaration.) While Plaintiff performed its obligations under the Agreement, Defendant breached same by defaulting on its payment obligations, resulting in total damages of \$3,464,197.90. (Lin Declaration, ¶¶ 5-12; Exhibits 1-3 to Lin Declaration.) By not opposing the Motion for Summary Judgment, Defendant did not meet its own burden of production to make a prima facie showing of the existence of a triable issue of material fact. Given the foregoing, Plaintiff’s Motion for Summary Judgment is granted. Moving party is ordered to give notice.
14	Onesource Distributors, LLC vs. Pheifer	TENTATIVE RULING: <u>Motion to Amend Judgment</u> Plaintiff OneSource Distributors, LLC, moves to amend judgment entered 04/08/2026 against Defendants Eric Pheifer and Katherine Fertig (collectively, the “Pheifer Parties”). For the following reasons, the motion is DENIED.